

XYZ	XYZ, Inc., a Delaware corporation	
Supplier	[REDACTED] Corporation formed in England and Wales, with a principal place of business at [REDACTED]	
Effective Date	Date of last signature	
Signatures	XYZ DocuSigned by: Bob van Winden [REDACTED] [REDACTED] [REDACTED] Date signed: 4/5/2023	Supplier DocuSigned by: Nimesh Akhauri [REDACTED] [REDACTED] [REDACTED] Date signed: 4/6/2023

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1. SERVICES

(a) **Statements of Work.** Supplier (including any Affiliate(s) named in an SOW) will provide services to XYZ (the “**Services**”) as specified in a statement of work (each a “**Statement of Work**” or “**SOW**”). During the term of this Agreement, the Parties may execute additional SOWs. Each subsequent SOW is a separate contract between XYZ and Supplier for the delivery of the Services specified in the Statement of Work, and each such Statement of Work incorporates and is governed by the terms of this Agreement.

(b) **Affiliate Statements of Work.** Services purchased under a SOW may be used by XYZ on behalf of itself and, at no additional expense, for the benefit of its Affiliates. Any XYZ Affiliate may enter into a SOW directly with Supplier with all of the rights and interests of XYZ under this Agreement and will be able to enforce the terms of this Agreement in its own name as to the performance of the applicable SOW. The obligations of a XYZ Affiliate in a Statement of Work will be the obligations of such Affiliate alone and not of XYZ or any other XYZ Affiliate, unless otherwise specified in the applicable SOW.

(c) **Change Orders.** The Parties may agree to modify a Statement of Work through an executed change order (each a “**Change Order**”). Where the change results in additional Services, Deliverables, Service Fees, or the extension of an SOW End Date, the change(s) will be specified in the Change Order.

(a) **Quality of Services.** Supplier will provide the Services in compliance with the relevant SOW and this Agreement. Supplier will, at no cost to XYZ, correct any Services and Work Product (as defined below) found to be defective or not in conformity with the requirements of this Agreement or the relevant SOW in the timeframe specified by XYZ.

- (b) **Equipment.** Supplier is responsible for procuring all facilities, equipment, software, and Personnel necessary for Supplier to provide the Services. Supplier will make any modifications to its equipment, systems and facilities reasonably required by XYZ in connection with the Services. Any XYZ-Provided Equipment will remain XYZ's property, and Supplier will have no right, title or interest in such XYZ-Provided Equipment. Supplier will be responsible for all damage, other than ordinary wear and tear, of XYZ-Provided Equipment. Upon termination of this Agreement, Supplier will promptly return all XYZ-Provided Equipment to XYZ in the condition it was received, ordinary wear and tear excepted.
- (c) If and to the extent that Supplier is unable to provide Services in accordance with agreed upon service levels or unable to perform its duties, obligations and responsibilities hereunder (i) as a direct result of any breach by XYZ of this Agreement or an applicable SOW, (ii) arising directly from an uncured failure of systems or software that are owned, designed, maintained, managed or provided by XYZ, or (iii) directly due to Supplier's reliance on written business instructions (including the documents incorporated into this Agreement), or actual defects that result in the inaccessibility of systems or software that are owned, designed, maintained, managed or provided by XYZ, then Supplier shall be excused from its obligations to perform the affected portion of the Services at the agreed upon service levels, provided that Supplier will promptly notify XYZ in writing upon becoming aware of such breach or inaccuracy so as to give XYZ a sufficient opportunity to remedy the same, and upon such cure by XYZ, Supplier shall continue to be obligated to perform such Services in accordance with the applicable SOW.

1.3. Independent Contractor.

- (a) **Independent Relationship.** Supplier will act as an independent contractor of XYZ, and this Agreement does not create any partnership, joint venture, agency or employment relationship between Supplier and XYZ. Supplier has the exclusive right to hire, transfer, suspend, fire, recall, promote, discipline, discharge and adjust grievances with all Personnel. Notwithstanding the foregoing, upon XYZ's reasonable written request on lawful grounds, Supplier will promptly cease using any specified Personnel in its performance of Services to XYZ.
- (b) **No Authority.** Supplier has no authority to enter into any agreement on XYZ's behalf.
- (c) **Working Hours and Location.** Supplier will establish and set its own hours of work provided that its contractual responsibilities are performed in an orderly and timely manner. If a SOW specifies a location or locations for the delivery of the Services, Supplier will deliver the Services from only that location or locations.

1.4. Personnel.

- (a) **Personnel Skill and Experience.** Supplier will ensure that its Personnel have sufficient skill, experience and ability to perform the Services. Supplier will use commercially reasonable efforts to prevent and identify all theft, damage, fraud or other misconduct by Personnel during the conduct of the Services ("**Misconduct**") that affects XYZ or its customers. Supplier will take appropriate action if Misconduct occurs.
- (b) **Personnel Not XYZ Employees; Wages and Benefits.** Personnel are not employees of XYZ for any purpose, including any wage and hour or taxing purposes, and entitlement to health benefits, insurance, stock options or other benefits. Supplier acknowledges and agrees that Supplier is solely responsible and liable for all Personnel-related costs of providing the Services ("**Labor Costs**") and all administration of Personnel wages, benefits and taxes, including (i) payment of compensation to Personnel; (ii) withholding and payment of FICA, FUTA, state unemployment insurance (or any of their equivalents in the jurisdiction in which Services are provided) and other taxes and applicable amounts with respect to payments made to Personnel; (iii) the provision of all insurance and other employment-related benefits to Personnel; (iv) payment of all minimum wages and overtime required by the FLSA and corresponding state law or regulations insurance (or any of their equivalents in the jurisdiction in which Services are provided); (v) Workers' Compensation coverage; and (vi) any other costs and expenses associated with the provision of Services under this Agreement. Supplier will pay all Labor Costs, and make all required tax withholdings, when and as due in compliance with Applicable Law.

- (c) **Responsibility for Personnel.** Supplier will (i) will ensure that its Personnel comply with this Agreement; and (ii) be responsible for all acts, omissions, negligence and misconduct of such Personnel.

1.5. Subcontractors.

- (a) Supplier will not subcontract or Sub-Outsource any Services, or delegate any of its obligations, to any third party (collectively, "**Subcontractors**") without XYZ's prior written consent. XYZ may grant or withhold its consent in its sole discretion. If XYZ so consents, then Supplier will oversee the Subcontractor(s) and ensure that all Subcontractors are bound by and comply with the terms of this Agreement and the relevant SOW(s). Notwithstanding the existence or terms of any subcontract, Supplier is responsible for the full performance of the Services and for its subcontractors' compliance with the terms of this Agreement.
- (b) Supplier will be solely responsible for payment of all amounts owing to any Subcontractors engaged by Supplier in connection with the Services. Upon receipt of payment by XYZ to Supplier of the amounts due Supplier under this Agreement, Supplier will promptly pay each Subcontractor the amount to which such Subcontractor is entitled.

2. PAYMENT FOR SERVICES

2.1. Service Fees; Costs.

- (a) XYZ will, subject to this Section, pay Supplier the fees for the Services specified in the relevant SOW ("**Service Fees**"). Supplier is entitled to no compensation or reimbursement for the Services other than as expressly provided in a SOW.
- (b) XYZ's final installment payment of the Services Fees upon completion of all Deliverables is subject to delivery by Supplier of all invoices, bills of sale, receipts or other proofs of purchase supporting the Expenses incurred by the Supplier during the Term.
- (c) Each party will bear its own costs and expenses in connection with providing the Services pursuant to this Agreement unless otherwise provided in the SOW or authorized in the DPA.
- (d) COLA/Inflation - Any increase in the Service Fees with respect to inflation will be included in the applicable Statement of Work.

2.2. Invoices and Payment.

- (a) After the completion of each billing period or on an agreed invoice date, Supplier will submit, using the form and method specified by XYZ, a single invoice for the Services delivered during that billing period or billable on the agreed invoice date.
- (b) XYZ will pay undisputed, properly-submitted invoices for the Service Fees within 30 days of receiving them, pursuant to the payment instructions of Supplier.

Supplier may update its payment instructions to XYZ from time to time on not less than 30 days' written notice to XYZ.

- 2.3. Taxes.** Supplier may charge and XYZ will pay all applicable sales or use taxes or value added taxes that Supplier is legally obligated to charge for the Services ("**Taxes**"), provided that such Taxes are stated separately on the original invoice that Supplier provides to XYZ. The fees for the performance of the Services are exclusive of Taxes. XYZ may provide Supplier an exemption certificate or equivalent information acceptable to the relevant taxing authority, in which case, Supplier will not charge or collect the Taxes covered by such certificate. XYZ may deduct or withhold any Taxes that XYZ determines it is obligated to withhold from any amounts payable to Supplier under this Agreement, and payment to Supplier as reduced by such deductions or withholdings will constitute full payment and settlement to Supplier of such amounts.

3. TERM AND TERMINATION

- 3.1. Term.** This Agreement continues indefinitely, until terminated by a party in accordance with its terms. A SOW begins on its Effective Date and, unless earlier terminated, ends upon XYZ's acceptance of the final milestone as specified in the SOW ("**Term**").

3.2. Termination.

- (a) XYZ may terminate this Agreement and all SOWs, or any SOW(s), for cause immediately upon written notice in the event that: (i) Supplier materially breaches this Agreement or the applicable SOW(s), respectively, and such breach remains uncured for at least 30 days after XYZ's notice to Supplier of its intent to terminate due to the breach; (ii) Supplier breaches the confidentiality obligations in Section 6 or the DPA between the Parties; (iii) Supplier becomes insolvent or discontinues business operations; (iv) Supplier makes a general assignment for the benefit of creditors or commences any proceeding under any reorganization, liquidation or bankruptcy law, or is subject to resolution procedures by any Regulatory Authority; (v) a Force Majeure Event (as defined in Section 11.7) prevents Supplier from, or impairs Supplier's ability to, perform its obligations under this Agreement and all SOWs, or any SOW(s), respectively, for more than two consecutive weeks; or (vi) Supplier breaches the provisions of this Agreement relating to Sub-Outsourcing or XYZ reasonably and in good faith believes that a Sub-Outsourcing arrangement causes material risk to XYZ.
- (b) Supplier may terminate a SOW for cause if XYZ: (i) fails to pay all undisputed Service Fees owed to Supplier and XYZ's failure remains uncured for at least 30 days after XYZ's receipt of notice of Supplier's intent to terminate due to the failure; or (ii) becomes insolvent, makes a general assignment for the benefit of creditors or commences any proceeding under any reorganization, liquidation or bankruptcy law, subject to Supplier's obligations in the event of a Resolution Event.
- (c) Either party may terminate this Agreement (and all affected SOWs) immediately upon written notice to the other Party if required by a Regulatory Authority, provided that the Parties will exercise commercially reasonable efforts to continue performance under this Agreement by implementing reasonable workarounds that are in compliance with Applicable Law on mutually agreed terms.

3.3. Termination for convenience. Either party may terminate this Agreement for convenience by giving at least 60 days' prior written notice to the other party. XYZ may terminate a SOW for convenience by giving at least 60 days' prior written notice to Supplier. Any reduction of Personnel, based on a request by XYZ, shall be governed by the terms and conditions set forth in the VORA.

3.4. Effect of termination or expiration. Upon termination of this Agreement or any SOW, unless expressly stated to the contrary in a SOW, XYZ is only liable to pay for Services performed up to the date of expiration or termination. If XYZ terminates this Agreement for cause, XYZ will have no obligation to reimburse Supplier for any expenses incurred or to pay a cancellation fee.

3.5. Survival. Sections 1.3 (Independent Contractor), 1.4 (Personnel), 1.5 (Subcontractors), 2.2 (Invoices and Payment), 2.3 (Taxes), 3 (Term and Termination), 4.2 (Work Product), 5 (Representations and Covenants), 6 (Confidentiality; Non-Compete), 7 (Records; Audits, Inspections; and Refunds), 8 (Defense and Indemnity), 9 (Limitations on Liability), 10 (Insurance), and 11 (General) will survive the termination or expiration of this Agreement.

4. PROPRIETARY RIGHTS

4.1. Use and License. Except with respect to Work Product, which is subject to Section 4.2 below, Supplier hereby grants to XYZ and its Affiliates a non-exclusive, worldwide, perpetual, irrevocable, royalty-free fully paid up license to (a) use, reproduce, perform, display, and distribute for XYZ's business purposes any Proprietary Rights embodied or incorporated in any Deliverables, (b) adapt, modify, and create derivative works of Proprietary Rights embodied or incorporated in any Deliverables, and (c) sublicense the foregoing rights, in each case with respect to such Proprietary Rights as may be incorporated into processes, documentation, or support operations used by XYZ (and any improvement or derivative thereof). The foregoing includes a license under any current and future patents owned or licensable by Supplier to the extent necessary to implement, use or combine any Deliverable with any hardware, software, or other process.

4.2. Work Product.

- (a) XYZ owns or upon assignment by the creator will own all right, title and interest (including all Proprietary Rights) in any Work Product, excluding any portion of the Work Product that

embodies any inventions or developments made by Supplier prior to the Effective Date or independent of this Agreement ("**Supplier Works**"). Supplier and/or its Affiliates are, and will remain, the sole and exclusive owners of all right, title, and interest in and to the Supplier Works, including all Proprietary Rights therein.

- (b) Supplier assigns to XYZ, its successors and assigns, all right, title and interest in and to the Work Product, including all rights in and to any inventions and designs embodied in the Work Product or developed in the course of Supplier's creation of the Work Product, to the extent that the Work Product does not qualify as a work made for hire under Applicable Law, and to the extent that the Work Product includes material subject to copyright, patent, trade secret, or any Proprietary Rights protection. . The foregoing assignment includes a license under any current and future patents owned or licensable by Supplier to the extent necessary to combine the Work Product or any derivative works thereof with any hardware and software. Supplier will execute any documents or take any actions in connection with such assignment that XYZ may reasonably request to secure and preserve XYZ's rights hereunder, or to enforce, defend or confirm XYZ's right to exploit those rights. Supplier will enter into agreements with its Personnel or any other party as necessary to establish XYZ's sole ownership in Work Product, and upon XYZ's request, Supplier will provide XYZ with copies of such agreements. Supplier appoints XYZ its attorney-in-fact to execute assignments of, and register all rights to, the Work Product and the Proprietary Rights in Work Product.
- (c) To the extent Supplier Works is embedded and necessary to use the Work Product, Supplier hereby grants to XYZ and its Affiliates a non-exclusive, worldwide, perpetual, irrevocable, royalty-free fully paid up license to use such Supplier Works solely in conjunction with the Work Product as per mutually agreed terms and conditions as set forth in the applicable SOW. Supplier will identify any Supplier Works included in Work Product in the applicable SOW. If Supplier fails to comply with the immediately preceding sentence, the foregoing limitations on XYZ's use of Supplier Works will not apply.
- (d) If Supplier proposes to include any third-party-owned materials in any Work Product or other Deliverable, Supplier will (i) identify those materials to XYZ and must receive XYZ's prior written approval before including them in any Work Product or providing them as a Deliverable, and (ii) with respect to any third-party-owned materials in any Work Product, obtain such rights in the applicable third-party-owned materials needed to grant XYZ all rights permitted to be granted by such third party.
- (e) At any time upon request from XYZ and upon termination or expiration of this Agreement, Supplier will deliver to XYZ in tangible form all materials containing Work Product and all other Deliverables, in each case whether complete or in process.

5. REPRESENTATIONS AND WARRANTIES

- 5.1. Supplier's Representations and Warranties.** Supplier represents and warrants that: (a) Supplier will perform the Services in a competent and workmanlike manner in accordance with the level of professional care customarily observed by highly-skilled professionals rendering similar services; (b) all Work Product and Deliverables will meet the specifications stated in the SOW that apply to the specific Work Product and Deliverables; (c) the Services and Deliverables do not and will not violate, infringe or misappropriate any third party's Proprietary Rights provided however, the indemnification obligation in Section 8.1 (a) of this Agreement and the right to terminate the Agreement for Supplier's material breach will be the sole and exclusive remedy of XYZ, for any breach of representation and warranty contained in this Section 5.1 (c); (d) it and its Personnel will comply with all Applicable Law; (e) it and its Personnel hold and will hold, and fully comply with, all applicable licenses, permits and approvals required to perform the Services by governmental authorities having jurisdiction in the locations in which the Services are delivered; (f) all Personnel providing the Services have executed a valid and enforceable non-disclosure agreement with Supplier that protects XYZ's Confidential Information; (g) it is not currently and has never been subject to any investigation or action related to money laundering or terrorist financing; (h) it has a physical presence in the country(ies) where Supplier is incorporated or otherwise formed, and licensed; and (i) it has all rights necessary for (and is not subject to any restriction, penalty, agreement, commitment, law, rule, regulation or order which is violated by) its execution and delivery of this Agreement and performance of its obligations under this Agreement.

- 5.2. XYZ's Representation and Warranties** – XYZ represents and warrants that (a) it will comply with, all Applicable Laws, and will procure licenses, permits and approvals required to perform its obligations under this Agreement; (b) it has all rights necessary for (and is not subject to any restriction, penalty, agreement, commitment, law, rule, regulation or order which is violated by) its execution and delivery of this Agreement and performance of its obligations under this Agreement; (c) to the best of its knowledge is not currently subject to any investigation or action related to money laundering or terrorist financing.
- 5.3. XYZ Data.** Supplier is a data processor to XYZ and will act on behalf and in accordance with the instructions of XYZ in performing the Services. Supplier will use XYZ Data for the sole purpose of performing the Services and in accordance with DP Law and the DPA and/or SRA between the Parties, if applicable. Supplier will process XYZ Data only in the location(s) identified in the relevant SOW and will not transfer XYZ Data to a different location without XYZ's prior written authorization.
- 5.4. Anti-bribery and Corruption.** Supplier will (a) not violate the Foreign Corrupt Practices Act of 1977, the UK Bribery Act 2010, or other applicable anti-bribery, anti-money laundering and anti-corruption laws, and specifically will not offer, promise, give, request, agree to receive, or accept anything of value or any benefit in kind made with the intent to induce improper performance (or take any such actions knowing or believing that the action itself would constitute improper performance); (b) be able to show it has implemented reasonable controls to prevent third parties contracted in relation to XYZ from engaging in bribery or corruption, including controls around activity that may involve government officials; and (c) promptly report in writing to XYZ if Supplier becomes aware of any violations of the above.
- 5.5. Disclaimer of Warranties.** Except as stated in this Section 5, the Services and Deliverables are provided "as is". Supplier disclaims all other warranties, whether express or implied, including any implied warranties of merchantability, or fitness for a particular purpose, whether arising by a course of dealing, usage or trade practice or course of performance.

6. CONFIDENTIALITY

- 6.1. Non-Disclosure; Non-Use.** A party receiving Confidential Information (the "**Receiving Party**") of the other party (the "**Disclosing Party**") will not, for a period of three years following receipt of the Confidential Information, disclose, communicate, publish, disseminate, or make accessible, in any manner, the Disclosing Party's Confidential Information to any third party except in accordance with the terms of this Agreement and Applicable Law. All Confidential Information will remain the Disclosing Party's exclusive property. The Receiving Party will take reasonably diligent measures to protect the secrecy of, and avoid the unauthorized disclosure or use of, the Disclosing Party's Confidential Information. In handling the Disclosing Party's Confidential Information, the Receiving Party will exercise the highest degree of care that the Receiving Party uses to protect its own similar Confidential Information, although never less than a reasonable level of care or a level of care required by Applicable Law. A Receiving Party may use the Disclosing Party's Confidential Information only as reasonably necessary to fulfill an obligation or exercise a right under this Agreement and only as permitted by this Agreement. The Receiving Party will comply with any additional requirements of Applicable Law with respect to the Disclosing Party's Confidential Information. The provisions of this Section 6.1 are in addition to and not in lieu of any higher standards of confidentiality imposed by Applicable Law.
- 6.2. Permitted Disclosures.** A party may disclose Confidential Information to its employees, officers, directors, agents, contractors, service providers, financial advisors, attorneys, accountants or consultants ("**Representatives**"), provided that (a) disclosure of Confidential Information is limited to Representatives who have a need to know the Confidential Information in order to carry out the terms of this Agreement or to enable the party to exercise its rights under this Agreement; (b) the party informs its Representatives of the confidential nature of the Confidential Information; (c) the party requires its Representatives to treat Confidential Information with the same level of care as applies to the party's own obligations under this Agreement; and (d) with respect to Supplier, any disclosure to a Third Party Supplier complies with Section 1.5(a) above. A Receiving Party will be liable to the Disclosing Party for any unauthorized use or disclosure or misappropriation of the Disclosing Party's Confidential Information by the Receiving Party's Representatives. XYZ may disclose Supplier's Confidential Information to XYZ Affiliates for the purposes of this Agreement.

6.3. Return of Confidential Information. Upon termination of this Agreement (except as necessary for a party to perform any post-termination obligation under this Agreement) or at XYZ's request with respect to XYZ's Confidential Information, each party will (a) discontinue all use of the other party's Confidential Information; and (b) return to the other party, or destroy, the other party's Confidential Information.

6.4. Compelled Disclosure. In the event that a Receiving Party is required (by oral questions, interrogatories, requests for information or documents in a court or administrative proceeding, subpoena, civil investigative demand or other similar process) to disclose any of the Disclosing Party's Confidential Information or is otherwise required by such process or by Applicable Law to disclose any such information, the Receiving Party will provide the Disclosing Party with prompt notice of any such request or requirement so that the Disclosing Party, with assistance from the Receiving Party, may, at the Disclosing Party's expense, seek a protective order or other appropriate remedy and/or waive compliance with the provisions of this Agreement.

6.5. Confidential Data. Supplier will treat all XYZ Data as Confidential Information under the meaning of Section 6.1, above.

6.6. Existing Confidentiality Agreement(s). If XYZ and Supplier have entered into a nondisclosure agreement in any form prior to the Effective Date of this Agreement, this section 6 will supersede and control to the extent of any inconsistent terms.

7. RECORDS; AUDITS; INSPECTIONS; AND REFUNDS

7.1. Records. During the term of this Agreement and for four (4) years thereafter, Supplier will keep all customary records and books of account relating to the Services and all quality and performance reports related to the Services ("**Supplier Records**"), provided that Supplier Records shall not include (i) any data, information or records related to any other customer of Supplier, (ii) any records from Supplier sub-contractors not involved in the provision of Services to XYZ under this Agreement, or (iii) the employment contracts, costings, margins or other internal data related thereto of Supplier or any sub-contractor.

7.2. Audit Rights, Inspections and Refunds.

(a) During the term of this Agreement and the period described in Section 7.1, XYZ may, once annually (unless the audit directly results from a breach by Supplier of this Agreement or an SOW, or an audit exposes a material breach by Supplier of this Agreement or an SOW, in which case the audit will not count against the immediately preceding limitation), audit Supplier Records to verify Supplier's statements and compliance with this Agreement (a "**Supplier Records Audit**") by giving 20 days' prior written notice. Supplier Records Audits will be conducted by XYZ or an independent certified public accountant or consultant selected by XYZ (not being Supplier's direct competitors). Supplier will provide XYZ's designated auditors with reasonable access to the relevant Supplier Records and Supplier facilities, provided that access to Supplier facilities shall be subject to XYZ's and its auditor's compliance with Supplier's reasonable site-specific security and safety policies and procedures.

(b) If a Supplier Records Audit shows Supplier overcharged XYZ by 5% or more during any audited time period, Supplier will re-compute the amount due and immediately refund to XYZ all overpayments based on the actual amounts due and owing.

(c) Supplier will remediate issues identified by XYZ within a reasonable timeframe not to exceed ninety (90) days upon receipt of findings. The results of any Supplier Records Audit or assessment conducted by XYZ upon Supplier will be confidential. If there is a finding of non-compliance, and Supplier does not take corrective action to mitigate such non-compliance to XYZ's satisfaction, then XYZ will have the right to immediately terminate this Agreement and one of more Statement(s) of Work, in whole or in part, by providing written notice to Supplier.

Subcontractor Compliance. Supplier will require all of its Subcontractors involved in providing Services to comply with the provisions of this Section 7 as if such Subcontractors were Supplier.

8. DEFENSE AND INDEMNITY

8.1. Supplier's Obligations. Supplier will defend XYZ and its Affiliates and their respective directors, officers, employees, and agents from and against all demands, suits, claims, causes of action, proceedings or investigations by third parties or government agencies ("**Claims**") and indemnify and hold such indemnified parties harmless from all losses, liabilities, damages, costs

and expenses (including reasonable attorneys' fees and fees related to any regulatory proceeding) ("**Losses**"), to the extent the Claims arise out of, are in connection with, or relate to allegations concerning any of the following: (a) the violation, infringement or misappropriation of any Proprietary Rights by any Services or Deliverables; (b) any violation of Applicable Law (applicable to the Supplier) by Supplier or any Personnel; (c) any action brought by, or on behalf of, any employee, agent, consultant or Subcontractor of Supplier; (d) any injury to or death of any individual, or any loss of or damage to real or tangible personal property, caused by the act or omission of Supplier or of any of its agents, Subcontractors, or employees; (e) any action brought by, or on behalf of, any taxing or other governmental authority in relation to Personnel, including for payment of wages or benefits or tax withholding; and (f) any gross negligence or willful misconduct by Supplier or any Personnel.

8.2. XYZ's Obligations. XYZ will defend Supplier from and against all Claims and indemnify and hold Supplier harmless from all Losses to the extent the Claims arise out of, are in connection with, or relate to allegations of (a) bodily injury, death, sickness, property damage or other physical injury, harm or damage caused by any negligence or willful misconduct of XYZ or its Affiliates and their respective directors, officers, employees, successors, assigns, insurers, independent contractors or agents, excluding claims resulting from the active negligence of Supplier, and (b) the violation, infringement or misappropriation of any Proprietary Rights by XYZ.

8.3. Procedures. The indemnified party will provide the indemnifying party with prompt notice of any such Claim. A failure by the indemnified party to promptly notify the indemnifying party will only affect the indemnifying party's obligations under this Section 8 to the extent that such failure materially prejudices the ability to reduce the Losses of the indemnified party. Neither party may consent to the entry of any judgment or enter into any settlement without the other party's prior written consent, which will not be unreasonably withheld or delayed. The indemnifying party will use counsel reasonably satisfactory to the indemnified party to defend each Claim. The indemnifying party will, if it so requests, be given immediate and complete control of any proceedings or negotiations in connection with any Claim (provided that the indemnifying party will not make any admission of liability or commit to any other obligations on behalf of indemnified party without indemnified party's prior written consent).

9. LIMITATIONS ON LIABILITY

9.1. Exclusion of Certain Damages. Except for (a) incidental or consequential damages arising from a breach of a party's confidentiality obligations under Section 6 (provided that such damages will be subject to Confidentiality Cap set forth in Section 9.3 below), (b) damages arising from a party's indemnification obligations under Section 8, *provided that* Supplier's liability for Indirect Damages arising out of its obligation to indemnify XYZ against Losses in Section 8.1 (a), (c) and (e) of this Agreement is limited to amounts that are found to be Indirect Damages owed to a third party by XYZ, pursuant to a finding of finding of a competent court or governmental body; *provided further* Supplier's liability for Indirect Damages arising from a breach of Section 8.1 (b), DP law, or its obligations regarding Personal Data and XYZ Data is subject to the Data Breach Cap set forth in Section 9.3); , or (c) damages arising from a party's gross negligence, willful misconduct, or fraud, neither party will be liable for incidental, exemplary, special, punitive, indirect, consequential damages, lost opportunities, lost profits, loss of goodwill (collectively, "**Indirect Damages**"), arising out of or related to this Agreement, even if the parties have knowledge of the possibility of such damages and whether or not such damages are foreseeable. Certain states and/or jurisdictions do not allow limitations of liability for incidental or consequential damages, so the exclusions stated above apply only to the extent permitted by applicable law.

9.2. Limit on Amount of Damages Recoverable. Each Party's cumulative liability for any and all causes of action, claims and damages in connection with this Agreement, regardless of form of action, whether based on contract, warranty, tort (including negligence), statute or otherwise will not exceed the total Service Fees (excluding Expenses and taxes, if any) paid to Supplier in the twelve (12) months immediately preceding the date of the incident out of which the liability arose for Services provided under the Agreement (the "**Base Cap**"). This limitation will not apply to (a) a Party's gross negligence, willful misconduct or fraud, (b) either party's indemnification obligations arising out of Section 8 of this Agreement, or (c) the categories of damages in Section 9.3 (Super Caps).

9.3. Super Caps. Subject to Sections 9.1, Supplier's aggregate liability for all losses, liabilities and damages arising out of or in connection with Supplier's breach of its obligations relating to XYZ Data (including Personal Data), under the DPA or Section 5.2 of this Agreement, including Supplier's indemnification obligation under the DPA, will not exceed the greater of 4 times the Base Cap and \$3,000,000 USD (the "**Data Breach Cap**"). Subject to Section 9.1, Supplier's aggregate liability for all losses, liabilities and damages arising out of or in connection with its breach of Section 6 (Confidentiality) of this Agreement will not exceed two times the Data Breach Cap (the "**Confidentiality Cap**").

10. INSURANCE

10.1. Required Policies. Supplier will maintain the following insurance coverages in addition to any insurance requirements contained in an SOW:

Employers Liability insurance for USD \$9,000,000 per occurrence and in the annual aggregate

Errors & Omissions Insurance for USD \$9,000,000 per occurrence and in the annual aggregate

10.2. All insurance policies must have an effective date no later than the date that Services commenced and coverage must continue for a period of not less than two years after this Agreement is terminated. Supplier will submit insurance certificates as evidence of required insurance coverage to XYZ upon request.

11. GENERAL

11.1. Assignment. Supplier will not assign any part or all of this Agreement, or subcontract or delegate any of Supplier's rights under this Agreement, without XYZ's prior written consent. XYZ may grant or withhold such consent in its sole discretion. Any attempt to assign, subcontract or delegate in violation of this Section is void in each instance. XYZ may assign this Agreement (or any of its rights and obligations under this Agreement) (a) to any of its Affiliates; or (b) in connection with any merger, consolidation, reorganization, sale of all or substantially all of its assets or any similar transaction. For the sake of clarity, all references to "**this Agreement**" in this Section 11.1 include SOWs.

11.2. Governing Law and Venue. This Agreement is governed by the laws of the State of California, excluding its conflicts of law rules. Supplier irrevocably submits to venue and exclusive personal jurisdiction in the federal and state courts in San Francisco, the County of San Francisco, California, for any dispute arising out of this Agreement, and waives all objections to jurisdiction and venue of such courts.

11.3. Notices. Notices and consents under this Agreement are sufficient if given in writing, conspicuously identified as a notice, and delivered to the email address specified in the SOW. A party may change its notice address by giving notice in accordance with this Section.

11.4. Severability; Cumulative Rights. If any provision of this Agreement is determined to be unlawful, void or unenforceable, it will be deemed severable from this Agreement and will not affect the validity or enforceability of the remaining provisions of this Agreement. The rights and remedies of the parties under this Agreement are cumulative, and either party may enforce any of its rights or remedies under this Agreement or other rights and remedies available to it at law or in equity.

11.5. No Waiver. A party does not waive any right under this Agreement by failing to exercise any right under any of the terms of this Agreement. Any waivers granted hereunder are effective only if recorded in a writing signed by the party granting such waiver.

11.6. Construction. The Section headings of this Agreement are for convenience only and have no interpretive value. This Agreement may be executed in counterparts, which together will constitute one and the same agreement.

11.7. Force Majeure. Neither party is responsible for any delay in the performance of any obligation under this Agreement to the extent that the delay results from events beyond the reasonable control of such party and is not occasioned by such party's fault ("**Force Majeure Event**"); provided, however, that (a) such party's performance is only excused to the extent of such delay, (b) such party promptly notifies the other party, in writing, of the cause of such delay

and the steps that it is taking to remedy such delay, (c) such party uses reasonable efforts to implement the steps to remedy such delay, and (d) such delay could not have been avoided by the reasonable efforts of such party.

- 11.8. Injunctive Relief.** Supplier acknowledges that any material breach of this Agreement by Supplier would cause XYZ irreparable harm for which XYZ has no adequate remedies at law. Accordingly, XYZ is entitled to specific performance of this Agreement or injunctive relief for any such breach. Supplier waives all claims for damages by reason of the wrongful issuance of an injunction and acknowledges that its only remedy in that case is the dissolution of that injunction.
- 11.9. Right of Offset.** XYZ may offset any undisputed amounts which may be owed by Supplier to XYZ (including any losses accruing to XYZ as a result of Misconduct) from payments otherwise owed by XYZ to Supplier provided that XYZ gives Supplier a written notice of 15 days prior to exercising its right of set-off and Supplier shall have a right to raise a dispute, if any, during such notice period.
- 11.10. Costs and Legal Fees.** In the event of any legal proceeding between the parties arising from this Agreement, each party will bear its own legal fees and expenses, including attorneys' fees and court costs.
- 11.11. Binding Effect; Entire Agreement.** This Agreement inures to the benefit of and is binding upon the parties and their respective successors and assigns. This Agreement, together with all associated exhibits, schedules, SOWs, and Change Orders which are incorporated by this reference constitute the complete and final agreement of the parties pertaining to the Services and supersede the parties' prior agreements, understandings and discussions relating to the Services. No modification of this Agreement is binding unless it is in writing and signed by XYZ and Supplier.
- 11.12. No Publicity.** Supplier will not use any trade name, trademark, service mark, logo or commercial symbol, or any other proprietary rights of XYZ or any of its Affiliates in any manner (including use in any recruiting materials, client list, press release, advertisement or other promotional material), without the express prior written consent of XYZ. Supplier will not advertise or otherwise publicly announce that Supplier provides Services to XYZ before XYZ makes such matters public by issuing a press release, or in any event, disclose in this context any of XYZ's Confidential Information.
- 11.13. Resolution Event.** To the extent required by law, following a Resolution Event, Supplier will continue to provide Services under this Agreement and any current SOW(s) as long as (a) Supplier's continued performance of Services is permitted by law; and (b) the Resolution Event does not prohibit XYZ from complying with its payment obligations under the Agreement.

EXHIBIT A - DEFINITIONS

“Affiliate” of an entity means an entity controlling, controlled by, or under common control with such entity.

“Applicable Law” means laws (constitutional, statutory, case, common, code), regulations, directives and orders of any domestic (federal, state or local) or foreign governmental or regulatory authority, releases and guidance from any regulatory authority and decrees of all courts, tribunals and arbitrators, whether existing now or subsequent to the Effective Date, including the DP Law. The foregoing are “applicable” to a party if they are binding on or apply to either party or if they relate to the Services.

“Confidential Information” means (a) all financial, technical, legal, business, commercial and other data and information (except for information and data specifically excluded from the definition below) of XYZ or its Affiliates that is not readily accessible through legal means by the public, regardless of form or format (i.e. written, oral, electronic, digital) (including all trade secrets and all information and data covered or protected by the DP Law) and (b) all pricing information of Supplier or its Affiliates that is not readily accessible through legal means by the public, in each case that is disclosed or provided by or on behalf of the applicable Disclosing Party to the Receiving Party or to which a Receiving Party is given access. Failure to mark or designate any particular Confidential Information as confidential or proprietary will not affect its status as Confidential Information under the terms of this Agreement if the circumstances and context reasonably indicate that the information and data at issue should be treated as confidential or proprietary under the circumstances. Examples of XYZ Confidential Information include (a) XYZ Data, (b) this Agreement and the business relationship between the parties, and (c) information with respect to employees of XYZ that is non-public, confidential, business-related, or proprietary in nature, including names, positions, contact information and employee identification numbers and any other information released to Supplier. Supplier Confidential Information includes (a) Supplier's pricing information, and (ii) this Agreement and the business relationship between the parties. Except as is otherwise provided by the DP Law, Confidential Information will not include any information that (a) at the time of disclosure by or on behalf of Disclosing Party is in the public domain, or known by the general public or Disclosing Party's industry through no improper act (including a breach of this Agreement or any other confidentiality or non-disclosure agreement); (b) a party receives from a third party free from any restriction as to its use or disclosure and such third party had no obligation to Disclosing Party not to disclose such information; (c) one party independently develops without reference to or use of any Confidential Information of the other; (d) the Receiving Party knew or had access to, without any obligation of confidentiality, prior to the disclosure of the Confidential Information from Disclosing Party; or (e) information disclosed for unrestricted release with the written approval of the Disclosing Party.

“Deliverables” means all deliverables, products, documents, materials, information, tools and other items that Supplier delivers or is required to deliver in connection with the Services, including documentation, concepts, works, manuals, designs, diagrams, charts, reports, analyses, scripts, models, drawings, programs, software, utilities, code, inventions, discoveries, improvements, devices, apparatus, designs, practices, processes, methods, formulas, or know-how.

“DPA” means Data Processing Agreement.

“DP Law” has the meaning given it in the DPA between the Parties.

“Expenses” means amounts agreed to in an SOW relating to direct pass-through costs that are in addition to, but do not include, the Service Fees.

“Personal Data” means any information relating to an identifiable natural person that Supplier processes (e.g., transmits or accesses) through the Services, and includes “personal data” as defined under EU Regulation (EU) 2016/679 (General Data Protection Regulation or GDPR) and “personal information” as defined under the California Consumer Privacy Act of 2018 (CCPA).

“Personnel” means any employees, contractors, agents and Subcontractors of Suppliers.

“Proprietary Rights” means trademarks, trade secrets, copyrights, patents and any other intellectual property rights.

“Regulatory Authority” means the European Banking Authority (“EBA”), Monetary Authority of Singapore (“MAS”), UK Financial Conduct Authority (“FCA”), Central Bank of Ireland, Central Bank of Malaysia (“BNM”), Brazilian Central Bank (“BCB”), Payments Canada and the Financial Consumer Agency of Canada, the Australian Securities and Investments Commission, including any successor of

any of these regulatory bodies, and any other government department, committee, or body that has statutory standing to supervise, regulate, investigate or audit Supplier's performance of the Services.

"Resolution Event" means XYZ's or its Affiliate's commencement, continuation or completion of a bankruptcy, insolvency, liquidation, receivership or unwinding or any other resolution proceeding with the aim of safely and effectively resolving a financial institution or its group in financial distress, including under applicable bankruptcy law with respect to XYZ or any Affiliate.

"SRA" means security requirements addendum or other addendum or agreement detailing Supplier's information security obligations relating to XYZ Data.

"XYZ Data" means all data (including Personal Data as defined in the DPA between the Parties) (a) collected, received, stored or maintained by the Supplier in connection with Supplier's performance of its obligations under this Agreement (including data or information collected by or associated with any cookies), (b) provided by XYZ to Supplier, or (c) derived from (a) or (b).

"XYZ-Provided Equipment" means any equipment provided by XYZ to Supplier, enabling Supplier to provide the Services.

"Sub-Outsourcing" means the delegation by Supplier of the performance of any of the Services to a Subcontractor.

"Work Product" means any Deliverable developed for XYZ in connection with Services, whether developed by Supplier or any of its Personnel, either alone or with others, and whether completed or in-progress.

EXHIBIT B – VENDOR OUTSOURCING REQUIREMENTS ADDENDUM

XYZ and Supplier (“**Vendor**” in this **VORA**, will have the same meaning as Supplier under the Agreement) agreed to this Vendor Outsourcing Requirements Addendum (the “**VORA**”) and the policies referenced and incorporated into the **VORA**, which XYZ may modify from time to time (the “**Policies**”). All capitalized terms not defined in this **VORA** have the meanings set forth in the Agreement. In the event of conflict between this **VORA** and the Agreement or an SOW, the **VORA** will control except if an SOW expressly states that it supersedes or modifies this **VORA**, then the SOW takes precedence (but only with respect to the Services listed in that SOW).

1. **Location.** Vendor will provide the Services only from the location(s) specified in the applicable SOW (each a “Vendor Site”).
2. **Information Technology Infrastructure.** Vendor will maintain computer, network and information technology equipment sufficient to comply with XYZ's IT infrastructure requirements (the "IT Infrastructure Requirements"), reflected in **Policy 1**.
3. **Background Check and Information Security.** Vendor will comply with XYZ's background check and information security policy (the "Background Check and Information Security Policy"), reflected in **Policy 2**.
4. **Physical Security.** Vendor will comply with XYZ's physical security policy (the "Physical Security Policy"), reflected in **Policy 3**.
5. **Support Role Requirements.** Vendor will comply with XYZ's support role requirements (the “Support Role Requirements”), reflected in **Policy 4**.
6. **Policy Updates.** XYZ may update one or more of the Policies, from time to time, in its sole discretion. Any such update will be made effective by providing Vendor a copy of the updated Policy in writing or posting the updated Policy to a website or electronic repository accessible to Vendor and notifying Vendor of the posting.
 - a. Any such updated Policy will become effective immediately when it is made available or provided to Vendor.
 - i. If Vendor reasonably believes that (a) compliance with an updated Policy would impose a materially burdensome additional cost to Vendor; or (b) Vendor is unable to comply with the updated Policy based on legal or policy restrictions, then Vendor will provide prompt written notice to XYZ detailing the additional cost to comply with the updated Policy or the legal or policy rationale preventing compliance. Following XYZ's receipt of such notice, the parties will discuss Vendor's concerns in good faith for a period not to exceed ten business days and attempt to agree on an approach regarding the implementation of such updated Policy. If Vendor does not provide a notice detailing its concern within 10 calendar days from the date the updated Policy is made available, then the updated Policy will become effective.
7. **Personnel.**
 - a. **Assessments:** Personnel must successfully complete the required assessments for their line of business and role profile in order to qualify to support the XYZ account. Assessments may occur, at XYZ's discretion, prior to hire (recruitment), during/post training (training), and on the job (ongoing).
 - b. **Language Proficiency.** Personnel i.e. Support roles must possess language skills at the CEFR C2 or equivalent SVAR score of 78+ mastery level and be a native speaker in the primary language in which Services are provided unless otherwise agreed by XYZ in writing. Unless mutually agreed upon by XYZ and Vendor, all Personnel whose primary Service is provided in a language other than English (i.e. multi-lingual personnel), must possess a CEFR C2 proficiency in the primary language in which

Services are provided and English language skills at the CEFR C1 level or equivalent SVAR score of 65+ mastery for all languages in which Services are provided. Vendor will cause Personnel to take writing, accent and fluency tests as requested by XYZ, and will provide XYZ upon request the results of such tests. Vendor will not use Personnel rendering the Services for any other of its customers during the period that they are assigned to the Services. If Personnel are rendering services to another client, then they may not be used for the Services unless otherwise agreed in writing by XYZ.

- c. **Senior Vendor Program Manager.** Vendor will appoint a representative reasonably acceptable to XYZ (the "**Program Manager**") who will (i) understand this Agreement and the performance of Services hereunder; (ii) be knowledgeable about XYZ's and Vendor's support operations, technology, software and systems; and (iii) serve as the point of contact for, and represent Vendor in connection with, matters related to this Agreement. The Program Manager will be solely dedicated to managing Vendor's provision of the Services to XYZ and Vendor will not assign the Program Manager any other duties. XYZ may at any time request the elimination of the Program Manager position.
- d. **Vendor Security Representative.** Vendor will appoint a representative knowledgeable about physical security matters and reasonably acceptable to XYZ who will serve as a single point of contact for XYZ on all matters related to the physical security of the Vendor Site.
- e. **Vendor IT Infrastructure Representative.** For each Vendor Site, Vendor will provide a qualified staff member to serve as a single point of contact for XYZ on all IT Infrastructure matters related to such Vendor Site.
- f. **Physical Security Representative.** For each Vendor Site, Vendor will provide a qualified staff member to serve as a single point of contact for XYZ on all physical security matters related to such Vendor Site.
- g. **Support Role(s) to Specialists Ratio.** "Specialists" are Personnel whom XYZ compensates for Services on the basis of productive or attended time, in accordance with a SOW. "Support Roles" must be staffed in accordance with a specific ratio of Support Role(s) to Specialists, and compensation for Support Roles is included in the Specialists' productive or attended hourly rate, not billed separately. At all times, Vendor will maintain at least the ratios defined in the table below of Support Role(s) to Specialists. (all Personnel—Support Roles and Specialists—must be solely dedicated to the XYZ account):

Support Role*	Responsibility	Ratio
Site Level Representative.	Responsible for day-to-day oversight of the account and communicating with XYZ operational contacts.	Minimum one (1)
Operations Manager	Responsible for Supervising Team Leads, day-to-day oversight of all Services, and communicating with XYZ identified operational stakeholders.	1:100
Team Lead	Supervise Specialists. All team leads must spend at minimum 5% of their work time dedicated to handling Customer Inquiries which will be non-billable.	1:15 at the line of business
Subject Matter Expert (SME)	Product Support experts that will support Specialists in their day to day activities. SMEs will not take over Team Lead's role in managing	1:30 at the line of business

	performance, but will instead focus on XYZ product knowledge	
Quality Assurance Specialist	Reviews Specialist responses, provides coaching, identifies any quality issues or incorrect responses and addresses such issues and responses with Specialists. All Quality Assurance Specialists must spend at minimum 5% of their work time dedicated to handling Customer Inquiries which will be non-billable.	1:20 at the line of business
Trainers/Training Lead	Lead onboarding training, facilitate training, lead or supervise ad-hoc trainings, help with self-paced trainings; work with the Quality Assurance Specialist and the Quality Manager to make sure Specialists have proper documentation. All trainers/training leads must spend at least 5% of their work time dedicated to handling customer Inquiries which will be non-billable.	1:50 at the line of business
Workforce Planning Management Manager	Responsible for the direction and support of Workforce Management Analysts. Ensures that all XYZ Workforce Management requirements are met according to set timelines.	1:150
Workforce Management Analyst	Responsible for intraday monitoring of volume flow, staffing levels, and Specialist activity including schedule adherence. Ensures execution of the day's staff plan and optimal SLA performance via timely schedule adjustments in response to deviations from the day's plan, such as unexpected volume spikes and staffing shortages. Provides requested intraday reporting. Also, responsible for Specialist scheduling per XYZ requirements.	1:50 provided that there is always at least one (1) RTA on every shift.
Quality Manager	Responsible for direction and support of Quality Leads and Trainers/Training Leads. All Training and Quality Managers must spend at minimum 5% of their work time dedicated to handling customer inquiries which will be non-billable.	1:150 at the line of business
Project Specialist	Project Manager; Responsible for Specialist readiness when there are XYZ launches and/or special projects	1:150 at the line of business

* "Lead" means Personnel available to answer questions, resolve escalations, and provide other assistance to Specialists while they are providing Services. When Specialists are providing Services from a Vendor Site, a Lead must also be located at the Vendor Site. Role requirements for other Support Roles (except RTA) are defined in Policy 4.

8. **Reports.** Vendor will prepare reports on aspects of the Services, such as staffing levels, training and planning, as reasonably requested by XYZ. Vendor will provide reports on weekly, monthly, and quarterly business performance by line of business and/or site as directed by XYZ.

9. Volume Levels.

- a. **No Volume Guarantee.** Except as may be set forth in a Work Order, XYZ does not guarantee any volume or specific mix of assigned work. Any Customer Inquiry forecasts that XYZ provides to Vendor are informational only, and not binding on XYZ. Vendor acknowledges that fluctuations in volume are expected, and Vendor is responsible for managing its staffing accordingly.
- b. **Staffing Forecasts.** To assist Vendor's planning, no less frequently than prior to the beginning of each calendar quarter (i.e. January 1, April 1, July 1, October 1), and no more frequently than prior to the beginning of each month, XYZ will provide Vendor with a non-binding estimate of staffing estimates for at least the following six calendar months (each, a "**Planning Estimate**").
- c. **Monitoring.** The Vendor will monitor volumes with a view to immediately identify spikes and/or backlogs, ensuring prompt and regular communication with XYZ. Similarly, should any Specialist absence hamper productivity and jeopardize service level attainment by Vendor, immediate discussion will take place between Vendor and XYZ.

10. Workforce Management.

- a. **Weekly Forecasts.** XYZ will provide the Vendor with interval level production requirements at a 60-minute time interval ("**Interval Ordered Hours**") aggregated to weekly production requirements ("**Ordered Hours**").
 - i. XYZ will communicate (1) the Ordered Hours to be performed in a week no later than 84 days before the start of the applicable week, and (2) the days and time the Ordered Hours will be performed no later than 30 days before the start of the applicable week (the "**Timing Notice**"). XYZ may increase or decrease the Ordered Hours by 10% with at least thirty days' notice (an "**Adjustment**").
 - ii. The Vendor will deliver production line adherence meeting the Interval Ordered Hours for 95% of all intervals ordered for each week beginning on Sunday at 00:00 UTC and ending on Saturday at 23:59 UTC, without any misses on any day of the week as well as any misses on consecutive intervals.
 - iii. If the Vendor's delivered hours fails to achieve the line adherence targets and/or Ordered Hours, XYZ may request a credit amount equal to twice the cost to XYZ to alternatively staff the Ordered Hours.
 - iv. The Vendor may utilize overtime hours to reach the Ordered Hours total when necessary, in this case the hours supplied will be billed at the standard rate rather than the overtime rate. Any hours above the number of Ordered Hours requested by XYZ to be billed at an overtime rate must be pre-approved by XYZ in writing.
 - v. Vendor will not invoice, and XYZ is not liable to pay, any billed amounts in excess of the Ordered Hours multiplied by the applicable Productive Hour rate (the "**Max Billable**"), accounting for any Adjustments, unless otherwise agreed with XYZ in writing in advance.
 - vi. Vendor will report calendar month hours for invoicing approval to XYZ on a weekly basis in the invoicing template defined by XYZ.
- b. **Workforce Management Tooling.** XYZ and Vendor will use the workforce management tool provided by XYZ in its sole discretion (the "**WFM Tool**"). The Vendor shall be responsible for WFM Tool licenses and for keeping the WFM Tool updated in real-time to reflect staffing tallies or schedules for each interval. Vendor

will upload scheduled hours within 2 business days receipt of the Timing Notice. Vendor must integrate with the WFM Tool using one of the below options:

- i. Preferred: Licensing use of the WFM Tool, and using it as the primary tool for Specialist schedule management.
- ii. Acceptable alternative: Direct integration with the WFM Tool API and the vendors workforce management tool providing a real-time (no less than 60 minute interval) stream of schedule updates.

11. Quality Control.

- a. **Response Sampling.** Vendor will, as directed by XYZ, regularly review a representative and statistically significant sample of completed casework or other work items ("**Sampled Responses**") for each line of business. XYZ may periodically review the Sampled Responses. Sampled Responses will be shared with the Program Manager and Supervisors for follow-up, analysis and corrective action as appropriate.
- b. Vendor will adhere to the quality review process specified by XYZ. Vendor will ensure collation of a quality score and delivery to XYZ monthly.
- c. In the event of non-performance or failure to achieve the requisite quality score, the Vendor will assume responsibility for delivering additional training with a view to optimizing performance and driving optimum quality scores.
- d. Vendor will action issues and feedback relating to quality within the deadlines agreed between XYZ and Vendor. Vendor will conduct relevant incident and post mortem reporting in accordance to the timelines outlined in Section e (Personnel Misconduct).
- e. **Personnel Misconduct.**
 - i. **Prevention.** Vendor will use commercially reasonable efforts to prevent and identify all theft, damage, fraud, breaches of confidentiality, data and privacy, and violation of any and all applicable laws or any other misconduct perpetrated by Personnel during the conduct of the Services, using Vendor's IT Infrastructure, or from a Vendor Facility or a Remote Location ("**Misconduct**") that affects XYZ or its customers. Vendor will take appropriate action if Misconduct occurs.
 - ii. **Investigation.** If Vendor becomes aware of or suspects Misconduct in relation to the Services, it will report such potential Misconduct to XYZ immediately within 1 business hour, Vendor will immediately and thoroughly investigate such potential Misconduct.
 - iii. Vendor will immediately suspend access to all XYZ systems, XYZ hardware, and any other systems used in providing the Services by any person suspected of potential Misconduct.
 - iv. If requested by XYZ, Vendor will inform local law enforcement of the Misconduct and coordinate with local enforcement, and XYZ may disclose any information respecting such Misconduct to the applicable United States law enforcement authorities.
 - v. In any instance of suspected Misconduct, Vendor will provide, within one week of XYZ's request, an initial report on such potential Misconduct and will thereafter provide weekly updates to its report to XYZ until its investigation concludes. At the conclusion of its investigation, Vendor will provide a detailed written report describing its process of investigation, findings and remediations to prevent reoccurrence. Notwithstanding anything contained above, Vendor will handle Misconduct with Personnel as per Vendor's employment policy.

- f. **Quality Assurance Certification.** Quality Assurance Specialists must be certified by XYZ in order to conduct quality checks. Vendor will, at its sole cost, provide repeat trainings to any Quality Assurance Specialist that does not successfully pass the certification process after one try or for any new Quality Assurance Specialist that is backfilling an existing seat in the XYZ account.

12. Training.

a. Definitions.

- i. "Initial Training" means the training led by XYZ for the first hired class of Personnel, as described more particularly below.
- ii. "Onboarding Training" means the XYZ-specific training Vendor will lead for all Personnel, as described more particularly below.
- iii. "Nesting" means a period when newly onboarded Specialists shadow tenured Specialists on the XYZ account and/or have their cases reviewed by any tenured Personnel on the XYZ account before sending. Nesting follows Onboarding Training and has an approximate duration of 3 weeks.
- iv. "Supplemental Training" means additional training Vendor will provide to Personnel, as described more particularly below. (i) when XYZ launches a new product; (ii) when XYZ changes its products, services, or processes; and (iii) in response to findings arising from an investigation under Section 12(e) of the VORA.
- v. "Personnel Training" describes training broadly. It includes all types of training: Initial Training, Onboarding Training, Nesting, and Supplemental Training.

- b. **Training Generally.** Vendor will ensure that all of its Personnel performing Services successfully complete all training programs required by XYZ. Vendor will designate an ongoing trainer(s) at each Vendor Facility, per line of business. A trainer may support more than one line of business with XYZ's authorization.

- c. **Training Fees.** If rates for Personnel Training are not specified in an SOW then XYZ will compensate Vendor for Personnel Training hours at a rate that is 75% of the effective Productive Hour Services for the applicable Personnel. XYZ will compensate Vendor for Personnel classroom training and Nesting per the quoted training rate. XYZ will not compensate Vendor for hours of classroom training for Personnel who do not complete the full Onboarding Training and related Nesting. Personnel hired as attrition backfill will be trained at Vendor's sole cost.

d. Initial and Ongoing Training.

- i. XYZ will assist Vendor in Vendor's provision of Initial training for the first class of Personnel. Vendor will provide an experienced trainer or training manager ("Trainer") to participate in the full duration of Initial Training. The Trainer must have been an employee of Vendor in a training role for at least twelve calendar months prior to the Initial Training. The Initial Training will take place at Vendor's facility located at Vendor Site.
- ii. XYZ will provide a training schedule for the Initial Training, detailing daily breakdown of sessions by module with timelines prior to commencement of training. Unless otherwise specified in the Statement of Work, the Initial Training has a 3-4 week duration with up to an additional 3-4 weeks of Nesting.
- iii. Following the Initial Training, Vendor will lead follow-up Onboarding Training to all Personnel. Unless otherwise, specified in a Statement of Work,

Onboarding Training has a 3-4 week duration with an additional 3-4 weeks of Nesting.

- iv. For Initial Training and Onboarding Training, Personnel will be required to complete periodic assessments and meet a minimum assessment test score set by XYZ. Personnel who do not satisfactorily complete such assessments will be ineligible to support the XYZ account. Vendor is responsible for ensuring that all work meets the same XYZ quality standards as the tenured Personnel.
 - v. Vendor will provide Supplemental Training to Personnel (i) when XYZ launches a new product; (ii) when XYZ changes its products, services, or processes; and (iii) in response to findings arising from an investigation under Section 12(e) of the VORA.
- e. **Training Certification.** Trainers will be required to be certified by XYZ in order to lead Personnel Training. If a Trainer does not pass the XYZ certification process or leaves the XYZ account within the first twelve months, then a replacement Trainer shall become certified by attending train-the-trainer education, which is a combination of Initial Training, Onboarding Training, and relevant Supplemental Training, at XYZ's regional office (as specified by XYZ) at Vendor's sole cost
- f. **Training Materials.** XYZ will share with Vendor training materials and collateral with regard to XYZ product, culture, service and systems. The Vendor will build on XYZ training content in order to design and deliver a comprehensive training program that aims to provide Personnel with the necessary skills, knowledge and understanding of the processes and procedures required to carry out their duties effectively instill desired behaviors, aligned to XYZ mind-set. Any and all additional training must be approved by XYZ. Trainers, Quality Assurance Specialists, and Training/Quality Managers will create specific content or instructional materials for XYZ training needs as part of their core role. All training content produced, edited, or otherwise maintained by the Vendor on behalf of XYZ is considered property of XYZ. Training materials must not include any Vendor branding such as logos or other trademarks.
- g. **Training Room.** XYZ will have a dedicated training room at Vendor facilities. Access to the training room will be secured by electronic badge access or biometric access controls. The XYZ training room must be able to accommodate training for thirty Specialists plus all trainers, facilitators, support staff, and managers required to participate. Training room must have a full a/v setup for both local projection and remote training over VC, including cameras for remote observation of the space. One projection monitor must be visible from every usable area of the room. Desks in the training room must be moveable, with power and network wiring hubs that allow for multiple configurations. The training room must contain a podium and desk for the trainer.
13. **Transition Services.** On the termination or expiration of this Agreement or any Work Order, Vendor will assist XYZ with the orderly and timely transition, combination, centralization and/or winding down of the Services (the "Transition Services"). Vendor will invoice XYZ for the Transition Services at the rates specified in the applicable Work Order. If no rates are specified, Vendor and XYZ will agree in writing upon customary and reasonable rates that will apply to the Transition Services. If XYZ terminates the relevant Services for cause according to this Agreement, Vendor will provide such assistance at its sole cost. Vendor's assistance will include the timely transfer of data and records related to the Services, to ensure continued compliance with data reporting requirements; and the transition between technologies. This includes helping XYZ, its substitute Vendor, or a third party obtain licenses to enable XYZ or another Vendor to perform the Services substantially as performed by Vendor.

14. Hiring and Attrition.

- a. **Hiring of Vendor Talent by XYZ.** The Vendor is amenable to being considered an academy for XYZ, where Vendor Personnel could, at the appropriate time, transition to XYZ into a new role. XYZ may directly solicit Vendor Personnel upon mutual agreement of the Parties, provided however that (i) the Parties agree to act in good faith and Vendor will not unreasonably withhold, delay or condition its consent; (ii) this section shall not restrict XYZ from hiring any current or former Personnel of Vendor who responds to general employment advertisements through newspapers, online job boards or postings, agencies, open house or job fairs, or who makes a direct unsolicited inquiry as to employment with XYZ.
- b. **Attrition.** "Attrition" means a Specialist who moves off of the XYZ account after the first six weeks on the XYZ Account which includes classroom training and nesting (the "Onboarding Period"). The attrition target is set forth as: $\leq 3.0\%$ month/month (the "Monthly Attrition Target Goal"). Vendor will make its best effort to keep annualized attrition below or at 36%. XYZ and Vendor will discuss and agree to update the Monthly Attrition Target Goal from time to time. XYZ does not pay for attrition or for any Specialist that leaves the account prior to the end of the onboarding period.

15. Charges and Payment.

- a. **Payment.** The Vendor will invoice XYZ at a rate per Productive Hour up to the Max Billable. For these purposes: (a) A "Productive Hour" is limited to the actual time Specialists are active on tickets, chats, phone calls, reviews or are waiting for such contacts to arrive. Any non-productive time such as Vendor driven meetings, training, lunch, breaks, vacation or other is excluded from the productive hour metric. (b) XYZ will pay for the total Productive Hours delivered by Vendor. Unless specifically agreed otherwise in the SOW, XYZ will pay for specific non-productive time that is mutually agreed upon in writing by XYZ and the Vendor. There shall be no other fees or amounts payable to Vendor other than the productive hour rates as agreed and/or mutually agreed expenses. (c) The monthly invoice shall include the total number of Productive Hours and any mutually agreed upon non-productive time for the month as specified by 14 (b) multiplied by the hourly rate. All charges mentioned are exclusive of sales tax, use tax, value added tax or similar taxes.
- b. **Definition of Billable Time.** The following table defines how specific items are to be billed or not billed:

Item	Productive Hourly Pricing Model
Productive Time (Utilisation, Occupancy)	Client Cost
Vacation [PTO]	Vendor Cost
Public Holidays	Vendor Cost
Lateness	Vendor Cost
Absenteeism	Vendor Cost
Lunch / Breaks	Vendor Cost
Team Meetings	Vendor Cost
One to One Meetings	Vendor Cost

Quality Reviews	Vendor Cost
Casework, Reviews, and any other productive work completed by support staff (Operations Manager, Team Lead, Quality Lead, Trainer, Training and Quality Manager, Project Specialist)	Vendor Cost
Training - Onboarding (Growth)	Client Cost
Training - Onboarding (Attrition Backfills)	Vendor Cost
Training - New Product Launches	Client Cost
Training - Specialist Re-trainings	Vendor Cost
Personal Time	Vendor Cost
System Adherence - Vendor Outage	Vendor Cost
System Adherence - Client Outage	Client Cost

- c. **XYZ Time Tracker.** The total number of Productive Hours will be extracted from XYZ's internal time tracker at the end of each month. Vendor will leverage this tracker to capture Specialist' activities in real-time. Specialists' activity logs will track Specialists' behavior, including: (a) time spent in meetings and one-to-ones; and (b) time spent in ticket handling mode versus time spent conducting auxiliary activities including translation and other non-ticket handling activities. For the avoidance of doubt, Vendor's invoicing will stem from XYZ's internal time tracking system. Vendor and/or Specialist must use XYZ's internal time tracking software to track Specialist hours, whether productive or non-productive hours. All hours submitted to XYZ must be submitted through XYZ's time tracking software or platform. Any hours not submitted through the software shall not be considered recorded, and shall not be paid.

16. Invoicing.

- a. **Invoicing Address.** The Vendor invoices will be sent to Vendor's email address listed in the SOW.
- b. **Invoice Support and Invoice Period.** The Vendor will provide invoice estimates 7 days in advance of the end of each calendar month. The Vendor will provide invoices to XYZ with suitable support documentation no later than the fifth business day of the calendar month following the month in which the Services and Deliverables were performed by the Vendor. The period being invoiced will be the previous calendar month. Support documentation must include a csv (spreadsheet) version of the invoice and XYZ's required invoice supplement. XYZ may periodically modify the required invoicing format and provide updated instructions to the Vendor.

17. Escalations and Notifications.

- a. **Impact Areas.** Vendor will escalate to XYZ should Vendor have questions in any of the following impact areas:
- i. Escalation Level One | Critical Impact Areas – including major outages, system failures, high visibility public relations issues that are in progress, breach of XYZ data, and/or data loss or virus

- ii. Escalation Level Two I Operational Impact Areas – including systems downtime, system performance, policy concerns, and/or the potential high visibility public relations issue
 - iii. Escalation Level Three I Performance Impact Area – including slow system performance and/or training updates and queries
- b. **Response Times.** Vendor shall, in performing escalations, adhere to the following Vendor Report and Vendor Response times:

Escalation Level	Business Impact on XYZ	Vendor Report Time*	Vendor Response* Time
1	Critical	Within 1 business hour	Within 2 business hours
2	Operational	Within 4 business hours	Within 8 business hours
3	Performance	Within 24 business hours	Within 48 business hours

* XYZ will report escalation(s) to its Vendor contact person(s). All Vendor Reports and Responses to XYZ shall be in writing (email is sufficient).

18. Performance Management.

- a. **Performance Targets.** Performance targets in a SOW will supersede and control in the event of conflict. The SOW will indicate metrics for service levels, average handling time, solves per hour, delivered hours over forecast, customer satisfaction, schedule adherence, utilization, and occupancy.
- b. **Performance Bonus and Penalties.** XYZ will impose performance bonus and penalties against targets set forth in an SOW ("**Targets**"). XYZ may shift Targets periodically with written notice to Vendor. Bonuses for exceeding Targets will be capped at a maximum of 10% of total fees invoiced. Penalties for missing 5% or more of a Target will be capped at a maximum of 15% of total fees invoiced unless otherwise agreed in an SOW.

19. Facility Requirements.

- a. **Training Room.** Vendor will maintain a minimum of 2 dedicated training rooms per 100 Specialists. Each training room must have capacity to accommodate up to 30 Specialists.
- b. **Meeting Room.** Vendor will maintain a minimum of 2 dedicated meeting rooms per 100 Specialists engaged. Each meeting room must be secured to the same requirements as the training room and must have capacity to accommodate a minimum of 3 Specialists for coaching, performance review, and 1:1 meetings.
- c. **Seating Capacity.** Specialists may not work from home unless otherwise explicitly authorized by XYZ or in a SOW. If XYZ increases resource requirements and Vendor does not have adequate capacity, Vendor will immediately notify XYZ and work in good faith with XYZ to plan accordingly.
- d. **Canteen or Cafeteria.** Vendor will maintain 1 canteen or cafeteria per floor.
- e. **Branding.** XYZ logo and branding may be implemented in facilities dedicated to XYZ support. XYZ will provide all branding material and must approve each use of branding material in writing.

POLICY 1 – IT INFRASTRUCTURE REQUIREMENTS

The IT Infrastructure Requirements reflect XYZ's minimum requirements for Vendor's performance of the Services under the Agreement. Equivalent (or superior) equipment and/or configuration may be used to achieve the technical specifications and performance metrics set forth in the IT Infrastructure Requirements.

XYZ solely owns all equipment that it procures or supplies to Vendor, as well as equipment that Vendor purchases directly for which XYZ reimburses Vendor.

Network

For network connectivity for Service Associates' equipment, Supplier will use a redundant fully-air gapped network stack of XYZ-Supplied Equipment, to be placed in a secured IT distribution room or datacenter location at a Supplier Facility or Remote Location. There will be no physical or logical crossover between Supplier and XYZ networks in either the operational or training areas.

Vendor will provide:

- Rack space and cable management:
 - Must have minimum of 14 rack units of available rack space in 4-post racks that are bolted to the floor,
 - 5RU reserved rack space for servers and appliances,
 - 9RU+ reserved rack space for firewall, remote management, OOB, core and access switches,
 - 1RU of ADDITIONAL rack space for every block of 48 agents above 80 agents.
 - A minimum of 36 inches clearance around entire rack
 - Horizontal and vertical cable management within the rack
 - Enclosed horizontal ladder management for cabling
 - Fully enclosed racks that have lockable doors both front and back. All keys must be kept in a secured location that is fully auditable as who checked out the key, why, who requested/authorized it from XYZ, when it was checked out and when it was checked back in.
- Power and cooling:
 - Must have 2000W (+120W Per 48 agents over 80) total accessible power
 - Must have 2 independent/separate power circuits
 - Three-phase power is preferred, but single-phase is fine; most office buildings are single-phase,
 - Must have 2 separate PDUs providing AC (alternating current) power
 - Voltage will not matter as network equipment is auto-sensing between 120 and 240 VAC,
 - Must have a minimum of 18 C13 power outlets.
 - Must have (2) C13 Power plugs for each network device,
 - (2) Additional power outlets per 48 users over 80.
 - APC PDUs Recommended (AP8959)
 - Must have 1 ton, or 12,000 BTU/per hour, cooling capacity per 600 sq feet/55 sq meters.
 - Must have capacity to keep room at 72 Fahrenheit/22 Celsius or cooler.
 - Must have capacity to keep room at 55% humidity or lower.
 - Should have portable air coolers onsite.
 - Should have ability to monitor and alert local onsite staff in case of HVAC failures or deviations from the standards.
- Must have horizontal wiring to the workstations.
- Must have network patch cables from horizontal wiring to the network gear, as well as to the end device.
- If multiple IDF's or distribution rooms exist, 4 pairs (8 strands) of single mode fiber (OS2) must connect the rooms from the MDF/Central room to the remote distributions rooms. Ideally terminated as SC connector, although LC is acceptable.

- If the internet circuits are to be terminated in a room separate from the core network gear, 1 copper cat6 connection and 4 pairs (8 strands) of single mode fiber (OS2) should connect these locations.

XYZ-supplied equipment (which will be configured and managed by XYZ) will include:

- (2) 1U firewall appliances
 - Typical model: Juniper SRX1500
- (2) 1U core switches (if the site has more than one additional IDF outside of the MDF)
- (2+) 1U access switches
 - Typical model: Juniper EX3400-48T
 - 1 physical port per agent workstation + 24 ports reserved for infrastructure
 - (Ex: 100 agents: 100 ports + 24 reserved ports = 124 ports / 48 ports per switch = 3 1U switches)
 - Headcount used for port count is expected 1 year maximum
- (1) 1U Remote management server(s)
- (1) 1U rack mount out-of-band management server
- Miscellaneous rack mount servers and appliances (up to 5U)
- Miscellaneous fiber patch cables and optics
- Internet connectivity:
 - Two internet circuits each from a different Carriers/ISP
 - 1Gbps throughput each
 - Direct Internet Access
 - Terminated in MPOE
 - LX/1310 nm/Singlemode handoff
- Out of Band Management:
 - A separate DSL/Cable/etc. connection with a static IP
 - 1mbps minimum throughput
 - Terminated in MDF where network equipment resides
- There are two redundant ISPs and a dedicated out of band connection for all sites. If an ISP fails, all sessions will come from a new IP address so there may be a momentary interruption of service that will resolve once all connections reset.

Hardware

XYZ requires Vendor to have or obtain the equipment listed in this policy.

Vendor Procured Hardware

XYZ will configure, maintain and manage the listed devices in accordance with XYZ's image and access control policies, and will provide all required software, operating system(s), and related software updates. Vendor will provide remote onsite support for XYZ:

XYZ will not reimburse Vendor for hardware expenses not listed above, including non-listed hardware purchased as part of a bundle with listed hardware.

Vendor is responsible to procure and provide the hardware listed below. The below hardware must be provided by the vendor and will not be reimbursed by XYZ.

- HDMI or DisplayPort compatible 24" displays, two per single Personnel
- Wired noise-cancelling over-ear headsets with microphones optimized for phone calls (for Specialists involved with phone based support only)
- Wired keyboard and wired mouse
- All required equipment for remote training
- All appropriate CAT6 patch cabling
- UPS power for all racked equipment
- Proper cooling (Additional 1-ton of cooling for XYZ equipment located in IDF/"network closet")
- All equipment and peripherals required for chromebox or chromebook work including but not limited to keyboard, mouse, mousepad, and webcam for Personnel working from home.
- All equipment required to enable training and conference rooms for Zoom video conferencing.

- Chromebox Asus CN66(1 per vendor Personnel) with minimum specifications:
 - CPU: Intel Core i7-10510U: 4C/8T, 1.80/4.90 GHz (15W)
 - PCH: Integrated
 - Memory: DDR 16G (8G*2)
 - Storage: M.2 eMMC: 256G PCIE G3 SSD
 - Example: <https://www.asus.com/displays-desktops/mini-pcs/chrome-os-devices/asus-chromebox-4/>
- Chromebook Asus CN66(1 per manager or trainer) with minimum specifications:
 - CPU: Intel Core i7-10510U: 4C/8T, 1.80/4.90 GHz (15W)
 - PCH: Integrated
 - Memory: DDR 16G (8G*2)
 - Storage: M.2 eMMC: 256G PCIE G3 SSD
 - Example: <https://www.asus.com/displays-desktops/mini-pcs/chrome-os-devices/asus-chromebox-4/>
- Compatible webcam for remote meetings and/or training sessions. Here are recommended models:
 - [Preferred Option] <https://www.logitech.com/en-us/product/hd-webcam-c270>
 - [Backup Option] <https://www.logitech.com/en-us/product/hd-webcam-c615?crd=34>
 - [BackUp Option] <https://www.logitech.com/en-us/product/hd-pro-webcam-c920s>
- Yubico FIDO U2F Security Key USB Device, 1 per Personnel / Support Team Member
 - Not to be removed from the Vendor's secure premise (must be checked in and out at the beginning and end of Personnel shifts with auditable check-in/out logs for 90 days). All security keys must be securely stored in a locked storage solution that cannot be easily removed from the premises.
 - May be removed from the Vendor's secure premise if Vendor is under a 'Work From Home' exception
 - The XYZ approved model is at <https://www.yubico.com/product/security-key-by-yubico/>

ISPs

There are two redundant ISPs and a dedicated out of band connection for all sites. If an ISP fails, all sessions will come from a new IP address so there may be a momentary interruption of service that will resolve once all connections reset.

Remote Meeting Facilities

Vendor must meet the following requirements for remote meeting facilities:

- A minimum of one meeting room equipped with Zoom conferencing capabilities for XYZ-required meetings.
- All training rooms must have Zoom conferencing capabilities and be set-up for remote training. Training rooms must be able to project the trainer and training content via Zoom.

Other

Supplier will provide a designated IT point of contact for XYZ. This person will work remotely with XYZ IT's team for onboarding, troubleshooting, network-related issue escalations, and ongoing support requests. IT Support requests should be made by the above designed IT point of contact to XYZ via email. XYZ will provide a dedicated support email address to be assigned to the Supplier at time of implementation.

Further detail on IT specs to satisfy these requirements will be agreed by the parties in a scope document.

POLICY 2 – BACKGROUND CHECK AND INFORMATION SECURITY POLICY

Background Checks

Definition of “Background Check”. In this Policy, “**Background Check**” is defined as per section three of the ‘Security Requirements Addendum’ and includes the additional requirements set forth in this policy.

Additional Background Check Requirements. XYZ is prohibited from hiring or allowing persons on its premises who have or are engaging in the conduct or relationships prohibited under applicable regulations, such as FDIC Section 19, of the Federal Deposit Insurance Act. In order to facilitate XYZ’s compliance with these obligations, Vendor must conduct pre-employment Background Checks on all employees, subcontractors, or other third parties used by the Vendor who will or may be required to access, or conduct work activities in the performance of this agreement at a XYZ facility, office or other premises (“**On Premise Personnel**”). Without limiting the previous sentence, Vendor must screen, or must engage a third party to screen on its behalf, each On Premise Personnel’s name against the federal banking agency listings of individuals who are or were assessed civil monetary penalties (CMPs) or have been permanently removed and/or prohibited from banking. The FFIEC maintains links to each federal banking agency’s enforcement action website at <http://www.ffiec.gov/enforcement.htm>. Background checks must also include a check against the Office of Foreign Assets Control (OFAC), Politically Exposed Persons (PEP) and other applicable government denied persons lists. (e.g. potential Personnel should not be on either list) to ensure that no person on the XYZ account is included in such list.

Identity and Employment Verification. Vendor shall also verify each On Premise Personnel’s identity, and eligibility for employment under the law of relevant jurisdictions.

Policies and Reporting. Vendor must have a policy that addresses appropriate actions when a pre-employment or subsequent Background Check detects information contrary to what an On Premise Personnel provided, and if such discrepancies exist, or are suspected to exist, under no circumstances will Vendor permit the On Premise Personnel to access the XYZ premises. Vendor will notify XYZ immediately upon becoming aware of such discrepancies.

No Access Prior to Background Check Completion. Vendor must ensure that all On Premise Personnel have met all of the requirements under this Policy in advance of permitting the employee to access XYZ premises. All Personnel must have passed the Background Check before starting work on the XYZ account, and OFAC/PEP or other government lists, are checked. Background checks also need to be re-run on each Personnel’s anniversary of working on the XYZ account. Results of the background checks must, to the extent permitted by Applicable Law, be made available to XYZ at any time on XYZ’s request. Vendor shall have sole responsibility to determine whether a conviction or criminal record identified by a background check is reasonably related to the performance of Services and would cause the Personnel to be unsuitable for assignment, in accordance with any federal, state, or local anti discrimination laws or restrictions on the consideration of criminal convictions in making employment decisions.

Information Security

Remote Onboarding: Vendor must adhere to the remote spin up policy set forth by XYZ. All Personnel on the XYZ account must undergo an identification verification process prior to receiving XYZ equipment and log-in credentials. The identification verification process includes presenting a valid government issued identification and other authentication data via remote video conferencing to XYZ staff.

Non-XYZ Email Access: Any staff supporting the XYZ account in a Work From Home (WFH) environment must have access to a non-XYZ vendor issued email account that is accessible outside of XYZ equipment. No XYZ data should be transmitted via such email account.

Security Training: All Personnel are required to undergo a security training, which includes XYZ’s security policies, before starting work on a XYZ account. The training must also include an assessment of their understanding of the training, which the vendor Personnel must pass.

No Personal Items in XYZ Enclosure: Except as expressly permitted by XYZ in writing, Personnel may not carry phones, cameras, computer tablets, paper, thumb drives, or any other means with which they might copy XYZ or customer confidential information out of the Vendor premise. Personal phones and cameras, etc., must be secured off the production floor each day before Personnel may begin work on a XYZ account. In addition, personal items such as purses and bags that may conceal any of the above must also be secured outside of the XYZ work enclosure or shared premise, except as expressly permitted by XYZ in writing.

Network Monitoring: The network on which computer systems are connected on the premise must be monitored for external intrusions at all times, and protected with firewalls, with the capability of shutting off access instantly when external intrusions are detected. Any instance of external intrusion to the premise network, whether the intrusion accesses XYZ or XYZ customer information or not, must be reported immediately to XYZ. XYZ is responsible for managing the Chromeboxes, and all antivirus and patching will be XYZ's responsibility, with Vendor's local IT to assist as necessary with manual intervention, if needed.

Device Access to Authorized Personnel Only: Computer systems may only be accessed by authorized Personnel who are working on the XYZ account. Unique passwords must be used for all computers and systems (local and remote). Computers should have strong passwords that are algorithmically generated by an approved password manager and that said password manager marks as "strong". These passwords do not need to be updated or rotated unless required due to disclosure or compromise of the password. In cases where it is impossible to use a password manager, passwords must be 15 characters or greater and contain letters, numbers, special characters and a mixture of case. Controls must be in place on vendor-owned systems for password age, complexity, length and history of use, and passwords are required to be updated every 30 days. Password authentication on Chrome boxes will be managed by XYZ on XYZ's backend systems. Passwords should not be shared with anyone else.

No XYZ Data on Non-XYZ Equipment: XYZ Data must not be stored on any device or equipment that is not XYZ-Provided Equipment, unless otherwise approved in writing by XYZ. This includes any Vendor-issued devices used for employee management purposes.

POLICY 3 – PHYSICAL SECURITY POLICY

Vendor will not provide Services under the Agreement at any Vendor Site until XYZ has determined that Vendor is in compliance with (A) all of the requirements in the Physical Security Policy at such Vendor Site, and (B) applicable requirements in the Physical Security Policy at such Vendor Site. At XYZ's request and expense, Vendor shall engage a security auditor to conduct an independent audit of Vendor's compliance with the Security Policy (including Vendor Site penetration testing). Vendor shall have a qualified third party conduct physical penetration testing and logical penetration testing at the request of XYZ. Such audits and testing shall be carried out by an independent third party that is a XYZ preferred Vendor, or otherwise approved in advance by XYZ in writing, and the costs of such audits and testing shall be pre-approved by XYZ.

GENERAL

- All entrances to the Vendor premises must have security guard(s) monitoring access 24 hours a day, 7 days a week, badge access control points, and a perimeter security monitoring system, including security cameras with recordings.
- Badge entry is required for all access points to the Vendor premises.
- Turnstiles must be present at the entrance to Vendor premises unless otherwise agreed by XYZ in advance in writing.
- An intruder alarm system must be present and monitored 24 hours a day, 7 days a week. Security cameras with recordings must be present with recording retention of at least 90 days.
- A maintenance contract must be in place for all electronic security systems, including security systems within the XYZ Enclosure.
- A visitor management policy must be in place to log, monitor, and track all visitors to the site and/or the XYZ Enclosure.

XYZ ENCLOSURE

- XYZ must have its own enclosure that no other Vendor accounts have access to. The enclosure must contain a badge access control point at the entrance that is specific to team members with access to the XYZ account must be required for access to that enclosure. There must be a minimum of two electronic badge access control points before reaching the XYZ Enclosure.
- Dedicated turnstiles must be present at the entrance to Vendor premise unless otherwise agreed by XYZ in advance in writing.
- Logs of access into the XYZ enclosure must be provided to XYZ upon request within 1 business day of request.
- Security cameras must be in place to monitor the following activity
 - All points of entry and exit in the XYZ enclosure.
 - All points of entry and exit in the XYZ server room.
 - The agent and support staff workspace including all desks and stations. Computer screens and keyboards must not be in camera view.
 - Security video retention must be 90 days or the maximum permitted by local law.
- Dual authentication is required for access into server rooms. It is preferred that this be achieved with badge plus pin or badge plus biometric authentication.
- Logs of access into server rooms must be provided to XYZ upon request within one business day of request. In the event of unauthorized access to the premises, the security team must be able to put the access system into emergency mode and disable access to the premises and to the XYZ-specific work area until the system comes out of emergency mode. Door alarms are to be monitored in real time 24 hours a day, 7 days a week with a dispatch and response mechanism.
- No office conference areas, conference room video screens, whiteboards, monitor screens or any other device displaying XYZ information should be visible from outside of the XYZ enclosure.

HARDWARE SECURITY

- XYZ team's computer equipment must be physically secured during and after shifts. No equipment may leave the physical area in which the team works, and after work

hours, the equipment must be inaccessible to anyone else who may be on the premises (cleaners, security personnel, etc.).

- All computer equipment must be tracked with asset tags and serial numbers, organized utilizing asset management software or in a spreadsheet, and audited on a daily basis.
- IDF room, Network Equipment room and/or data closet must be secured with electronic badge access control. Such rooms must be monitored by security cameras 24 hours a day, 7 days a week.

EMERGENCY PLANNING

- Vendor is responsible to provide XYZ with a detailed standard Disaster Recovery Plan on a bi-annual basis that outlines procedures for employee safety, XYZ data protection, and other matters relating to the continuance of business operations.
- Vendor's documented Disaster Recovery Plan must provide within 24 hours notification of emergency services and, within two hours of the occurrence of an Information Security Incident or physical security incident, notify XYZ of the problem, the estimated duration of the problem and the problem's estimated impact on delivery of the Services. Vendor will maintain appropriate business continuity procedures and systems to ensure availability and security of Personal Data in the event of a disruption, disaster, or failure of Vendor's primary data systems.

POLICY 4 - COVID-19 POLICY

1. This COVID-19 Policy will remain in effect until XYZ notifies the Vendor in writing of its intent to terminate the COVID-19 Policy (the "COVID-19 Term"), at which time the specific terms and allowance set forth in this Policy will no longer apply.
2. The terms of the COVID-19 Policy will supersede and control over any conflicting terms in the Agreement during the COVID-19 Term. Specific terms in the COVID-19 Policy that supersede and control over conflicting terms in the Agreement include, but are not limited to, the following:
 - a) Vendor may permit Personnel to provide Services to XYZ from the usual residential address of such Personnel ("**Permitted Home**") and such Permitted Home will be deemed a pre-approved Remote Location under Section 1 of the VORA and deemed to meet the requirements of the Physical Security Policy, **PROVIDED THAT:**
 - i. Personnel only work from the Permitted Home, a Vendor Facility or other pre-approved Remote Location.
 - ii. Personnel complete any additional security training required by XYZ from time to time, which may be delivered remotely.
 - iii. All XYZ-Provided Equipment and any other equipment used to provide services to XYZ or used in connection with the provision of services to XYZ (together, the "**Equipment**") are asset tagged before Personnel work from their Permitted Home.
 - iv. Vendor keeps an accurate record of the address of each Permitted Home, which Personnel are taking home which Equipment, and when each piece of Equipment is returned.
 - v. Personnel connect to the internet using either a network cable or a secure password protected Wi-Fi connection. For clarity, public Wi-Fi must not be used on the Equipment or to provide the Services.
 - vi. Personnel log in using a secure VPN to connect to the XYZ and/or Support Provider's network and when providing the Services.
 - vii. Vendor monitors Specialist activity status in real time via the activity tracker admin tool. Accordingly, Vendor must ensure that Specialists log into and utilize the activity tracker on the relevant Equipment to track productive hours.
 - viii. Equipment is not used outside of Personnel's scheduled hours unless required to complete XYZ related work. Equipment must not be used for Personnel's personal use (including browsing the internet) at any time. XYZ will actively monitor usage of devices and URLs accessed and will report misuse to the Vendor.
3. Unless expressly addressed in this COVID-19 Policy, the Agreement shall continue in full force and effect during the effective term of the COVID-19 Policy.
4. All capitalized terms not defined in this COVID-19 Policy have the meanings set forth in the Agreement.

POLICY 5 - SUPPORT ROLE REQUIREMENTS

Unless expressly defined differently in a SOW, in which case the applicable SOW will supersede and control only for the Services provided under that SOW, the following role descriptions apply under the Agreement. The following role requirements are in addition to the requirements in Section 7(g) of the VORA.

1. Team Lead.

This role is to actively manage, lead, innovate, motivate and develop a team of Specialists. The role is involved in developing systems, processes and team members to achieve superior levels of service.

Responsibilities:

- Drive individual and team goals including but not limited to service levels, productivity, CSAT, escalation rates, and error rates.
- Proactively communicate with XYZ on daily operational matters.
- Partner with training and quality to ensure training and refresher training needs are identified and delivered.
- Provide timely Specialist reviews and handle all team member professional development.
- Provide support to the team at all times, including the handling of user inquiries.
- Facilitate regular Team meetings to ensure updates are delivered consistently and staff have an input into day-to-day operations.
- Work with RTA's to ensure queues are healthy and staffed appropriately.
- Any additional responsibilities as business needs dictate.

Required Qualifications:

- Language Proficiency in all supported languages: CEFR C2 level mastery or equivalent SVAR score of 78+ will be required as prescribed under the common global scale framework.
- Proficiency in technical support for cloud based productivity tools as demonstrated by prior work experience.
- Strong customer focus with superior written and verbal communication skills.
- Ability to work under pressure in a fast paced environment with limited structure.
- External candidates (not promoted within the XYZ account) require 2 years of prior team management experience in a BPO contact center. Internal candidates must have a proven record of successful performance on the XYZ account.

2. Quality Assurance Analyst.

The main focus of the Quality Assurance Analyst role is to monitor and drive CSAT and Quality Score performance of the team. The role requires in-depth knowledge and subject matter expertise with regards to guidelines, processes, policies and tools used by the Specialists on XYZ account. The role involves detailed analysis of random samples of user interactions, as well as review of all user interactions with unfavorable ratings (CSAT 1, 2 and 3) in order to address the gaps, provide guidance and feedback to support Specialists and record the outcomes of the root cause analysis. Quality Assurance Specialists are expected to work closely with the training function and proactively flag gaps or inconsistencies related to training, process, documentation, guidelines or tools.

Responsibilities:

- Maintaining up to date expertise on company products, procedures, processes and tools, as well as the taxonomy of issues related to enquiries from XYZ users.
- Perform Quality, CSAT and Feedback reviews as required by Operational needs.
- Assist in helping Specialist with live case management and questions about quality, tools usage, product and accuracy of responses.
- Coach and provide feedback to individual Specialists to develop their core skills and improve performance.
- Complete Specialist feedback sessions regarding Quality and CSAT.
- Create an open and honest feedback flow with Management regarding Specialists performance and recommendations.
- Maintain all records relating to quality, CSAT, accuracy and all other reviews.
- Collaborate with the Training function in order to flag the need for creation of training materials as required.
- Collaborate with the Project Specialists in order to flag the need for amendments in documented process guidelines (“Resolution Paths” and “Tier 1 Reference Center”).
- Provide daily / weekly / monthly updates and reports to site management.
- Collaborating with the Team Manager and Specialists to identify training, performance & quality opportunities.
- Identify and implement initiatives to increase overall customer satisfaction.
- Working on ad-hoc projects, tasks, deep dives as requested by the XYZ or by Management.
- Any additional responsibilities as business needs dictate.

Required Qualifications:

- Language Proficiency in all supported languages: CEFR C2 or equivalent SVAR score of 78+ level mastery will be required as prescribed under the common global scale framework.
- Strong attention to detail and analytical skills required to perform effective root cause analysis.
- Excellent communication skills required to proactively collaborate with other functions and XYZ in order to close the gaps related to identified root causes of sub-optimal user experiences.
- Customer service focused, with the ability to effectively work with colleagues, team managers and users in a friendly, respectful and polite manner.
- Proactiveness in relation to feedback.
- Analytical skills in using spreadsheets, presentations, and other analytical reporting software to analyze results and report on key metric drivers.
- External candidates require 2 years of prior work experience in a quality or leadership role in a BPO contact center.

3. Subject Matter Experts.

Subject Matter Experts will actively provide product and solution support to Specialists. The role is involved in developing deep product, processes, and solution expertise for Specialists.

Responsibilities:

- Provide floor support to all Specialists in solving incoming inquiries and cases with a focus on productivity, CSAT, escalation rates, and error rates.
- Proactively communicate with Specialists and Team Lead to ensure alignment on opportunities.
- Partner with training and quality Personnel to ensure training and refresher training needs are identified and delivered based on findings from interaction with Specialists.

- Provide support to Vendor team, including the handling of user inquiries to ensure they are familiar and up to date with the latest trends and best practices.
- Facilitate regular triage and learning sessions to ensure updates are delivered consistently and staff have an input into day-to-day operations.
- Any additional responsibilities as business needs dictate.

Required Qualifications:

- Language proficiency in all supported languages: CEFR C2 or equivalent SVAR score of 78+ level mastery will be required as prescribed under the common global scale framework.
- Proficiency in technical support for cloud based productivity tools as demonstrated by prior work experience.
- Strong customer focus with superior written and verbal communications skills.
- Ability to work under pressure in a fast paced environment with limited structure.
- External candidates (not promoted within the XYZ account) require 2 years of prior Subject Matter Expert experience in a BPO contact center. Internal candidates must have a proven record of successful performance on the XYZ account.

4. Trainer.

As the Training Lead you will work across the XYZ Account to support the teams in managing the quality process and training needs. The role will involve providing guidance and direction to Specialists in best practice methodology using XYZ guidelines and process. You will work with the Team Managers to ensure that support is given on an individual basis to meet agreed internal and customer satisfaction targets. You will also assist with the design and development of training programs and facilitate training sessions.

Responsibilities:

- Facilitate XYZ's onboarding and ongoing training programs. This includes enrolling learners in XYZ's LMS, ensuring completion of training, meeting learning objectives, and remediating knowledge gaps.
- Ensure XYZ on-boarding and continuous training is up to date. This includes continuous updating of the on-boarding and other training curriculum to reflect all updates from XYZ.
- Work with XYZ team to review and deliver new product training, specialized training modules and up-skill training as required.
- Identify areas of improvement and implement initiatives to improve operational metrics.
- Collaborate with the team manager, Specialists, and with any other stakeholders to identify training and performance needs.
- Designing, reviewing, and maintaining course materials and other documents, such as handouts, manuals, exercises, assessments and exams.
- Evaluating the effectiveness of training programs and learning outcomes against set learning objectives.

Required Qualifications:

- Language Proficiency in all supported languages: CEFR C2 or equivalent SVAR score of 78+ level mastery will be required as prescribed under the common global scale framework.
- Superior presentation and communications skills.
- Moderate technical proficiency, with the ability to explain complex technical concepts simply and clearly.

- Must pass XYZ certification requirements.

5. Project Specialist.

The Project Specialist works across the XYZ account to support teams in managing operational projects, coordinating process or product launches, overseeing the change management process, and serving as a point of contact for select responsibilities as delegated. They work with team managers, Quality Assurance Specialists, trainers, and XYZ to meet operational goals.

Responsibilities:

- Coordinate with XYZ on the launch of new products or changes to existing products to ensure Specialist readiness.
- Serve as primary point of contact for change management including but not limited to ensuring all change requests filed with the site are actioned as directed.
- Author or create documentation, training, presentations or other content as required by XYZ or management.
- Analyze operational results to identify key drivers to operational metrics.
- Any additional responsibilities as business needs dictate.

Required Qualifications:

- Language Proficiency in all supported languages: CEFR C2 or equivalent SVAR score of 78+ level mastery will be required as prescribed under the common global scale framework.
- Strong project management skills and the ability to deliver results under pressure.
- Superior presentation skills and ability to communicate complex concepts effectively.
- Excellent written skills and proven experience creating documentation, training, and other contact center contact materials.
- Very customer service focused, with the ability to engage with your colleagues, manager and users in a friendly, respectful and professional manner.
- For external candidates, 2 years of experience in a prior project management role.

6. Training and Quality Manager.

This role is to actively manage, lead, innovate, motivate and develop a team of trainers and/or Quality Assurance Specialists. The role is involved in developing systems, processes and team members to achieve superior levels of service.

Responsibilities:

- Drive individual and team goals including but not limited to training certifications for trainers, deadlines for training remediations, review targets for Quality Assurance Specialists, and all other relevant team metrics.
- Strategically manage the workload and workflows for both quality and training teams and set up the right organizational structures to support all lines of business and workflows.
- Proactively communicate with XYZ on daily operational matters relating to training and quality.
- Partner with operational teams to ensure that refresher training needs are identified and delivered.
- Become a customer experience expert partner to XYZ by developing in-depth knowledge on XYZ's training and quality processes (audits, calibrations, certifications etc.). Proactively suggest improvements to those processes and closely collaborate and provide feedback on new launches or process changes with a potential impact to quality or training

- Provide timely team member reviews and handle all team member professional development.
- Provide support to the team at all times, including the delivery of training for trainers and completion of quality review work for Quality Assurance Specialists.
- Facilitate regular Team meetings to ensure updates are delivered consistently and staff have an input into day-to-day operations.
- Any additional responsibilities as business needs dictate.

Required Qualifications:

- Proficiency in English at the CEFR C1 level mastery or equivalent SVAR score of 65+.
- Strong analytical and operations management skills
- At least one year of prior experience in training or quality work.
- Strong client focus with superior written and verbal communication skills.
- Ability to work under pressure in a fast paced environment with limited structure.
- External candidates (not promoted within the XYZ account) require 2 years of prior team management experience in a BPO contact center in a similar role. Internal candidates must have a proven record of successful performance on the XYZ account, in a quality or training capacity.